

CLOUD SUBSCRIPTION AGREEMENT

This Cloud Subscription Agreement (the "Agreement") is made as of 15 January 2026 (the "Effective Date") between AtlasSoft SE, registered in Munich, Germany ("Vendor"), and Nova Retail GmbH, registered in Hamburg, Germany ("Client").

1. Subscription

Vendor grants Client a non-exclusive, non-transferable subscription to access the AtlasSoft inventory-management platform (the "Platform") for up to 250 named users. The subscription includes standard support and all updates made generally available during the term.

2. Implementation and Delivery

Vendor shall complete onboarding, data migration and administrator training within thirty (30) days of the Effective Date, according to the mutually agreed implementation plan. Vendor shall provide a go-live readiness report at least five (5) business days before the planned go-live date.

3. Term and Renewal

The initial subscription term is twenty-four (24) months from the Effective Date. The Agreement renews for successive twelve (12) month periods unless either party gives written notice of non-renewal at least sixty (60) days before the end of the current term. Subscription fees are fixed for the initial term and any increase at renewal is capped at three percent (3%) per annum.

4. Fees and Payment

Client shall pay subscription fees of EUR 10,000 per month, totalling EUR 240,000 for the initial term, invoiced quarterly in advance. Invoices are payable within thirty (30) days of receipt. Vendor may charge statutory interest on amounts overdue by more than ten (10) business days.

5. Service Levels and Support

Vendor guarantees Platform availability of 99.7% per calendar month, measured excluding scheduled maintenance windows announced five (5) days in advance. Priority-1 incidents receive a response within one (1) hour and a workaround or fix target of eight (8) hours. If availability falls below the guarantee in two consecutive months, Client may terminate the affected subscription without penalty on thirty (30) days notice.

6. Reporting

Vendor shall provide Client with a monthly service report covering availability, incident statistics and open problem tickets, delivered within five (5) business days after each month end. The parties shall hold a service review meeting each quarter.

7. Data Protection

The parties shall comply with the EU General Data Protection Regulation (GDPR). Vendor processes personal data of Client's employees and customers exclusively on Client's documented instructions, in accordance with the Data Processing Agreement (DPA) attached as Annex 2, which forms an integral part of this Agreement. Vendor shall maintain ISO 27001 certification for the duration of the term and shall notify Client of any personal data breach without undue delay and at the latest within forty-eight (48) hours.

8. Confidentiality

Each party shall protect the other party's confidential information with at least the same degree of care it applies to its own confidential information, and no less than reasonable care, and shall use it only for purposes of this Agreement. The obligation survives for three (3) years after expiry or termination.

9. Intellectual Property

The Platform, its documentation and all related intellectual property remain the exclusive property of

Vendor. Client data remains the exclusive property of Client. Upon termination, Vendor shall make Client data available for export in a standard machine-readable format for sixty (60) days.

10. Liability

Each party's total aggregate liability under this Agreement is limited to the subscription fees paid or payable in the twelve (12) months preceding the event giving rise to the claim. Neither party is liable for indirect or consequential damages, loss of profit or loss of data, except in cases of intent or gross negligence, or for damages arising from injury to life, body or health, where statutory liability applies.

11. Compliance

Each party shall comply with applicable export-control, sanctions and anti-corruption laws, including the German Act on Corporate Due Diligence Obligations in Supply Chains to the extent applicable. Vendor shall upon reasonable request provide evidence of its compliance certifications no more than once per calendar year.

12. Termination

Either party may terminate this Agreement for good cause without notice, in particular if the other party materially breaches the Agreement and fails to cure within thirty (30) days of written notice. Client may terminate for convenience at the end of any calendar quarter on ninety (90) days prior written notice; in that case prepaid fees for periods after the termination date will be refunded pro rata.

13. Governing Law and Jurisdiction

This Agreement is governed by the laws of the Federal Republic of Germany, excluding its conflict-of-law rules and the UN Convention on Contracts for the International Sale of Goods. Exclusive place of jurisdiction is Munich, Germany.

14. Final Provisions

Amendments and additions to this Agreement must be made in writing. Should individual provisions be invalid, the validity of the remaining provisions remains unaffected. Annexes 1 (Service Description), 2 (Data Processing Agreement) and 3 (Price Schedule) form integral parts of this Agreement.

SIGNED for AtlasSoft SE

SIGNED for Nova Retail GmbH